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Frequently asked questions about tourist housing (HUT) [Company Channel](#)

[What is a tourist accommodation \(HUT\)?](#) ▼

Who is the owner of the tourist housing activity?
The one that is authorized in its entirety, by its owner, directly or indirectly, to third parties, **in exchange for a price**, for continuous periods of time equal to or less than **31 days**. Transfers for stays are not permitted.

What is the role of the town hall in the authorization process?
The town hall is the entity that authorizes the activity, where they are located, and its management can be entrusted to a third party (intermediary or manager).

The destination of a home for tourist use must be compatible with the regulation of uses where it is located and with the civil regulations that apply to it.

What must be done to prepare a home for tourist use? ▼

The destination of a home for tourist use must be compatible with the regulation of uses where it is located and with the civil regulations that apply to it.

More information
To find out about the licensing of homes for tourist use, access the Canal Empresa website.

You must have the certificate of occupancy.

- **Regulations** must satisfy, at all times, the technical and quality conditions required of housing in general. It must be sufficiently furnished and equipped with the necessary appliances and utensils for immediate occupation, and in a perfect state of hygiene.

- **Responsibility** The owner, or the manager to whom he or she delegates, must provide the city council, users and neighbors with a telephone number to immediately answer and resolve queries and incidents relating to the tourist housing activity.

Enabling housing for tourist use
It must guarantee a housing assistance and maintenance service.

[When can the tourist housing activity begin?](#) ▼

The activity can begin when the tourist accommodation is authorized.

Once the tourist accommodation is authorized, the city council communicates its registration to the Tourism Registry of Catalonia (RTC), which registers the accommodation and communicates to the owner the registration number in the Tourism Registry of Catalonia (NIRTC).

[Why is it appropriate to legalize housing for tourist use?](#) ▼

Because the exercise of this activity must be carried out within the law. The qualification of housing opens the activity to a better positioning in the market, thanks to promotion policies and the possibility of categorization.

Legalized housing benefits from the dissemination and tourism promotion that is carried out through the Official Tourist Accommodation Guide, and on the Catalonia Tourist Promotion Portal.

More information

- [Official tourist accommodation guide](#) .

- [Catalonia tourism promotion portal](#) .

[What happens if the tourist housing activity is not legalized?](#) ▼

That the exercise of the activity of illegal tourist accommodation constitutes a serious or very serious infraction with fines ranging from 3,001 to 600,000 euros. The owners, the people who carry out the activity and the people who collaborate with it may be liable and may be sanctioned by the city council or the Generalitat of Catalonia.

The non-legalization of the activity implies an effective loss of competitiveness of the tourist destination, and unfair competition against accommodations that are legalized.

[Do tourism regulations establish any type of limitation for the owner in aspects such as residence or registration?](#) ▼

No, tourism regulations are neutral in relation to these aspects.

[What contractual form should the transfer of a home for tourist use take?](#)



Tourism legislation does not predetermine any specific contractual form in which this transfer must be materialized, which can be carried out in any of the forms admitted by law.

[Can there be any restrictions on using a home for tourist purposes?](#)



The zoning of the sector where the home is located may limit or condition this use.

The statutes of the community of owners, registered in the Property Registry, may also limit this use in buildings subject to the horizontal property regime.

[Is housing for tourist use considered a public place?](#)



Public establishments are characterized by being buildings, premises or areas accessible to the public, and their free access cannot be restricted due to any personal or social condition or circumstance. Tourist accommodation establishments are considered public premises, that is: hotel establishments, tourist apartments, campsites and rural tourism establishments. On the other hand, housing for tourist use is not considered public premises.

[Is a tourist property the same as a tourist apartment establishment?](#)



No, they are different realities. Tourist apartments are establishments that provide temporary accommodation in buildings or continuous complexes made up entirely of apartments or studios, as single establishments or as business units operating with the corresponding tourist services. They do not have to have a certificate of habitability.

[Does the authorization to carry out the activity of housing for tourist use \(HUT\) also allow the activity of shared home?](#)



No, the tourist housing permit (HUT) cannot be used to carry out other tourist accommodation activities.

[Does the definition of "room" provided for in the Catalan Tourism Decree apply to shared homes and tourist homes?](#)



No. The definition of room set out in article 111-4.d) of the Catalan Tourism Decree refers to accommodation units in tourist accommodation establishments, such as hotel establishments; and shared homes and tourist homes are not tourist accommodation establishments.

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